



CHAPTER xlvii.

An Act to make better provision for the health local government and finance of the borough of Haslingden to consolidate the local rates leviable in the borough and for other purposes.
[14th July 1924.]

A.D. 1924.

WHEREAS the borough of Haslingden (in this Act referred to as "the borough") is a municipal borough subject to the Acts relating to municipal corporations and the mayor aldermen and burgesses of the borough (in this Act referred to as "the Corporation") acting by the council are the urban sanitary authority for the borough:

And whereas it is expedient that the Corporation should be empowered to construct a street improvement in the borough and to acquire lands for that purpose and that further powers should be conferred upon them with respect to their electricity undertaking:

And whereas it is expedient that further and better provision should be made with reference to infectious disease and sanitary matters and otherwise for the local government health improvement and finance of the borough and that the powers of the Corporation in relation thereto should be enlarged and extended:

And whereas the expenses of the Corporation whether as a municipal or sanitary authority or otherwise are payable out of the borough fund and borough rate or out of the district fund and general district rate of the borough subject so far as the general district rate

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A.D. 1924. is made for the purposes of the Public Health Acts to provisions for differential rating in certain cases and it is expedient that all the said expenses of the Corporation should be defrayed out of the borough fund and borough rate :

And whereas the township of Haslingden is co-terminous with the borough and it is expedient that the contributions of such township to the borough rate should be levied as part and be paid out of the poor rate for the said township and that in relation thereto the provisions contained in this Act with respect to differential rating in certain cases should be enacted :

And whereas it is expedient that the other powers contained in this Act should be conferred upon the Corporation :

And whereas a plan and section showing the line and level of the work to be authorised by this Act and a book of reference to the plan containing the names of the owners or reputed owners and lessees or reputed lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Lancaster which plan section and book of reference are in this Act respectively referred to as " the deposited plan section and book of reference " :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the Haslingden Corporation Act 1924.

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2. This Act is divided into Parts as follows:—

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| Part | I. | Preliminary. |
| Part | II. | Street improvement and lands. |
| Part | III. | Tramways. |
| Part | IV. | Electricity. |
| Part | V. | Streets buildings and sewers. |
| Part | VI. | Infectious disease and sanitary provisions. |
| Part | VII. | Human food. |
| Part | VIII. | Rating provisions. |
| Part | IX. | Finance. |
| Part | X. | Miscellaneous. |

Division of
 Act into
 Parts.

3. The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845) so far as the same are applicable to the purposes of and are not inconsistent with the provisions of this Act are hereby incorporated with and form part of this Act.

Incorpora-
 tion of Acts.

4. In this Act unless the subject or context otherwise requires the several words and expressions to which by the Public Health Acts meanings are assigned shall have in relation to the relative subject-matter the same respective meanings And the expressions—

Interpreta-
 tion.

- “The borough” means the borough of Haslingden;
- “The Corporation” means the mayor aldermen and burgesses of the borough;
- “The council” means the council of the borough;
- “The town clerk” “the surveyor” “the medical officer” “the treasurer” and “the sanitary inspector” mean respectively the town clerk the surveyor the medical officer of health the treasurer and the sanitary inspector of the borough and respectively include any person duly appointed by the Corporation to discharge temporarily the duties of any such officers;
- “The borough fund” “the borough rate” “the district fund” and “the general district rate” mean respectively the borough fund the borough rate the district fund and the general district rate of the borough;
- “The Public Health Acts” means the Public Health Act 1875 and the Acts amending and extending the same;

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- “The Act of 1906” means the Haslingden Corporation Act 1906;
- “The tramways undertaking” means the tramways undertaking of the Corporation as from time to time authorised;
- “The electricity undertaking” means the electricity undertaking of the Corporation as from time to time authorised;
- “The markets undertaking” means the markets undertaking of the Corporation as from time to time authorised;
- “Daily penalty” means a penalty for every day on which any offence is continued after conviction;
- “Infectious disease” means any infectious disease to which the Infectious Disease (Notification) Act 1889 is from time to time applicable within the borough;
- “The township” means the township of Haslingden;
- “The overseers” means the overseers of the township;
- “The poor rate” means the poor rate of the township;
- “The consolidated rate” means the poor rate as by this Act authorised to be levied and collected;
- “Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation;
- “Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration

money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed; and

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“Revenues of the Corporation” includes the revenues of the Corporation from time to time arising from any undertakings land or other property for the time being of the Corporation and rates or contributions leviable by or on the order or precept of the Corporation.

PART II.

STREET IMPROVEMENT AND LANDS.

5. Subject to the provisions of this Act the Corporation may within the borough make and maintain in the line and according to the level shown on the deposited plan and section a widening and improvement of Blackburn Road on the north side thereof between points respectively one hundred yards and eighty-eight yards west of Deardengate together with all necessary and proper works and conveniences connected therewith or incident thereto and may enter on take and use such of the lands delineated on the deposited plan and described in the deposited book of reference as they may require for the purposes of such work.

Power to construct street improvement.

6. In constructing the works authorised by this Act the Corporation may deviate from the line thereof as shown on the deposited plan to any extent not exceeding the limits of deviation shown on that plan and they may deviate from the level thereof as shown on the deposited section to any extent not exceeding three feet.

Limits of deviation.

7. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the thirty-first day of December one thousand nine hundred and twenty-four.

Period for compulsory purchase of lands.

8.—(1) Whereas in the construction of the works authorised by this Act or otherwise in the exercise by

Owners may be required to sell parts

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only of
certain
premises.

the Corporation of the powers of this Act, it may happen that portions only of certain properties shown or partly shown on the deposited plan will be sufficient for the purposes of the Corporation and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto. Therefore the following provisions shall have effect:—

- (a) The owner of and persons interested in any of the properties whereof the whole or part is described in the First Schedule to this Act and whereof a portion only is required for the purposes of the Corporation or each or any of them are in this section included in the term "the owner" and the said properties are hereinafter referred to as "the scheduled properties":
- (b) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Corporation that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Corporation such portion only without the Corporation being obliged or compellable to purchase the whole the Corporation paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:
- (c) If within such twenty-one days the owner shall by notice in writing to the Corporation allege that such portion cannot be so severed the arbitrator or other tribunal to whom the question of compensation is referred under the Lands Clauses Acts or as the case may require under the Acquisition of Land (Assessment of Compensation) Act 1919 (in this section referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled properties specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and

what other portion less than the whole (but not exceeding the portion over which the Corporation have compulsory powers of purchase) can be so severed: A.D. 1924.
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- (d) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Corporation the portion so determined to be severable without the Corporation being obliged or compellable to purchase the whole the Corporation paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal:
- (e) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner:
- (f) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not it shall determine that any other portion can be so severed) the Corporation may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice:
- (g) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Corporation in case they shall not withdraw the notice to treat shall pay to the

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owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and its final determination think fit.

(2) The provisions of this section shall be in force notwithstanding anything contained in the Lands Clauses Consolidation Act 1845 and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 (Parties not to be required to sell part of a house &c.) of the Lands Clauses Consolidation Act 1845.

(3) The provisions of this section shall be stated in or endorsed on every notice given thereunder to sell and convey any premises.

Correction
of errors in
deposited
plan and
book of
reference.

9. If there be any omission mis-statement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plan or specified in the deposited book of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county of Lancaster for the correction thereof and if it appear to the justices that the omission mis-statement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of Lancaster and a duplicate thereof shall also be deposited with the town clerk and such certificate and duplicate respectively shall be kept by such clerk of the peace and town clerk respectively with the other documents to which the same relate and thereupon the deposited plan or book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Corporation to take the lands and execute the works in accordance with such certificate.

10. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Corporation any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

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Persons under disability may grant easements &c.

11. All private rights of way over any lands which shall under the powers of this Act be acquired compulsorily shall as from the date of such acquisition be extinguished. Provided that the Corporation shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Extinction of private rights of way.

12. In settling any question of disputed purchase-money or compensation for lands acquired by the Corporation under any Act or Order of the Corporation from time to time in force the tribunal settling the same shall not award any sum of money for or in respect of any improvement or alteration made or any building erected after the date of the first newspaper advertisement of the notice of the intention of the Corporation to apply for powers to acquire the lands if in the opinion of the tribunal the improvement alteration or building in respect of which the claim is made was made or erected with a view to obtaining or increasing compensation nor in the case of any estate or interest in the lands created after the said date which in the opinion of the tribunal was created with a view to obtaining or increasing compensation shall any sum of money be awarded so as to increase the total amount of compensation which would otherwise have been required to be paid in respect of the acquisition by the Corporation of such lands.

Compensation in case of recently altered buildings.

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Further
powers for
acquisition
of land.

13.—(1) The Corporation notwithstanding that the same may not be immediately required may by agreement purchase or acquire or take on lease and hold any lands which in their opinion it is desirable the Corporation should acquire for or connected with the purposes of any of their undertakings powers or duties or for the benefit improvement or development of the borough and with the consent of the Minister of Health may borrow money for the purchase or acquisition of such lands or for the payment of any capital sum payable under a lease thereof Any moneys so borrowed shall be repaid within such period as may be prescribed by the Minister of Health.

(2) The Corporation may enter into contracts for the purposes of this section and may pay any sum payable under the contract and for that purpose may borrow money temporarily from their bankers for a period not exceeding twelve months :

Provided that any contract so entered into in respect of which the Corporation propose to borrow money exceeding in amount the sum of two thousand pounds shall be provisional until the consent of the said Minister shall have been given to the borrowing of money in respect thereof and shall only become binding if and when such consent shall have been given.

(3) When any lands purchased or acquired or taken on lease by the Corporation under this section shall be appropriated to any undertaking or to any of their powers or duties a transfer of the outstanding loan in respect thereof shall be effected to the proper account in the books of the Corporation and pending such appropriation all expenses incurred by the Corporation under this section shall be payable out of the borough fund and borough rate.

PART III.

TRAMWAYS.

14.—(1) Notwithstanding anything contained in this or any other Act to the contrary the Corporation may on any occasion run and reserve tramcars and omnibuses on any route on which the Corporation are from time to time authorised to run the same for any special purpose which the Corporation may consider

Power to
reserve
tramcars
and
omnibuses
for special
purposes.

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necessary or desirable Provided that such special tramcars and omnibuses shall be distinguished from others in such manner as may be directed by the Corporation and that during the running of such special tramcars or omnibuses the Corporation shall maintain a reasonably sufficient ordinary service of tramcars or omnibuses as the case may be.

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(2) The Corporation may make byelaws for prohibiting the use of any such tramcars or omnibuses by any persons other than those for whose conveyance the same are reserved and any such byelaws shall be made subject to and in accordance with the provisions of the Tramways Act 1870 with respect to the making of byelaws.

(3) The restrictions contained in this or any other Act of the Corporation as to tolls fares rates or charges for passengers shall not extend to any special tramcars or omnibuses run for such special purposes as aforesaid and in respect thereof the Corporation may demand and take such tolls fares rates or charges as they shall think fit.

15. The Corporation may for the purpose of regulating and facilitating the traffic on market or fair days or for the execution of any works by the Corporation or during the time of any public meeting procession or demonstration or for any other purpose which the Corporation having regard to the good government of the borough or the safety of the public may deem necessary order that the working of any tramways from time to time belonging to the Corporation or any part thereof shall be stopped delayed or suspended but so that such stoppage delay or suspension shall continue only so long as may reasonably be necessary for the purposes aforesaid or any of them and the Corporation shall not be liable to pay compensation for damage in respect thereof.

Power to Corporation to suspend tramway traffic.

16. Notwithstanding anything contained in this Act the Corporation may at such times and in such manner as they think fit (but subject to any byelaws from time to time in force with respect to their tramways) use the said tramways for sanitary purposes and for the conveyance of scavenging stuffs road metal coal and other materials required for the works of the Corporation.

Corporation may use tramways for sanitary purposes.

17. The Corporation shall in every year within three months after the close of their financial year or

Accounts to be furnished to Minister

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—
of Trans-
port.

Accounts of
omnibus un-
dertaking.

such longer period as the Minister of Transport may allow furnish to the Minister of Transport a copy of the annual accounts of the tramways undertaking.

18. The Corporation shall keep the accounts in respect of the tramways undertaking so as to show (so far as may be reasonably practicable) the receipts and expenditure in regard to their omnibuses separate from the receipts and expenditure in regard to the remainder of the tramways undertaking and in such accounts capital shall be distinguished from revenue.

PART IV.

ELECTRICITY.

Power to
lay electric
lines in
private
streets.

19. The Corporation may on the application of the owner or occupier of any premises within the area of the Corporation for the supply of electricity as from time to time authorised abutting on or erected or being erected in any street laid out or made and whether dedicated to public use or not supply such premises with electricity and may lay down take up alter re-lay repair remove and renew in across along or out of such street such electric lines and apparatus as may be requisite or proper for furnishing such supply and the provisions of the Haslingden Electric Lighting Order 1899 and the Electricity (Supply) Acts 1882 to 1922 so far as they are applicable for the purposes of this section shall extend and apply to and for the purposes of this section and to any works constructed or executed by the Corporation under the powers thereof as if such street were a street repairable by the inhabitants at large The Corporation shall not in carrying out any works under the provisions of this section unreasonably obstruct or interfere with the convenient access to any street belonging to or forming the approach to any station or depôt of the London Midland and Scottish Railway Company.

Attachment
of brackets
&c. to
buildings.

20. The Corporation may with the consent of the owner of any building attach to that building such brackets wires and apparatus as may be required for the purposes of the electricity undertaking Provided that—

(1) Where in the opinion of the Corporation any consent under this section is unreasonably refused

they may appeal to a petty sessional court who shall have power having regard to the character of the building and to the other circumstances of the case to allow the attachment subject to such terms as to compensation or rent and otherwise as they may think reasonable or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid : A.D. 1924.
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- (2) Any consent of an owner and any order of a petty sessional court under this section shall not have effect after that owner ceases to be in possession of the building but any attachments fixed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the Corporation notice in writing requiring the attachments to be removed Where such notice is given the preceding provisions of this section shall apply and the petty sessional court shall have the same powers as under proviso (1) :
- (3) The owner may require the Corporation temporarily to remove the attachments where necessary during any reconstruction or repair of the building :
- (4) No brackets wires and attachments shall be attached to any bridge or other work of any railway company without the previous consent in writing of that company.

For the purpose of this section any occupier of a building whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rack-rent shall be deemed to be the owner.

21. The Corporation may make byelaws for the purpose of preventing fire in any building or premises supplied with electricity by the Corporation with respect to the nature material workmanship and mode of arrangement of the wires apparatus and fittings in any such building or premises and required or used for the purpose of such supply and the provisions of section 6 of the Electric Lighting Act 1882 shall apply to any byelaws made under this section. Byelaws as to apparatus and fittings.

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No byelaws made under this section shall apply to or in respect of any building or premises (other than a dwelling-house) belonging to the London Midland and Scottish Railway Company.

Period of
error in
defective
meters.

22.—(1) In the event of a meter of a construction and pattern approved by the Minister of Transport or the Board of Trade used by any consumer of electricity being proved to register erroneously such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter.

(2) The amount of the allowance to be paid to or the surcharge to be made upon the consumer by the Corporation shall be paid by or to the Corporation to or by the consumer as the case may be and shall be recoverable in the like manner as charges for electricity are recoverable by the Corporation.

Power to
recover
charge for
re-connect-
ing.

23. Any expenses reasonably incurred by the Corporation in re-connecting any electric line or other work through which electricity may be supplied which may have been lawfully cut off or disconnected by reason of any default of the consumer may be recovered by the Corporation in the like manner as expenses lawfully incurred by them in such cutting off or disconnecting.

Maximum
power which
may be
demanded.

24.—(1) The maximum electrical power with which any consumer shall be entitled to be supplied by the Corporation shall not include any supply of energy taken only on extraordinary occasions or as a standby supply unless such consumer shall pay to the Corporation such minimum annual sum as will give them a reasonable return on the capital expenditure and will cover other standing charges incurred by the Corporation in order to meet the possible maximum demand for those premises the sum to be so paid to be determined in default of agreement by arbitration in the manner provided by section 28 of the Electric Lighting Act 1882.

(2) The provisions of this section shall not operate to deprive any consumer of electricity supplied by the Corporation under the terms of any agreement existing at the date of the passing of this Act of any right to which he would be entitled but for the said provisions.

25. The Corporation may in connection with and for the purposes of the electricity undertaking provide and fit up showrooms and offices and exhibit specimen installations and give demonstrations of the uses to which electricity can be put and may appoint and pay persons for the purposes aforesaid.

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Offices
showrooms
&c.

PART V.

STREETS BUILDINGS AND SEWERS.

26.—(1) For the purpose of facilitating traffic by removing obstructions to view the Corporation may give notice to the owner of any land situate at or within a distance of ten yards from the corner of any street or at or near any bend in any street prescribing the height of fences hoardings boundary walls hedges trees and shrubs at such corner or within such distance from the corner or bend as may be prescribed in the notice and thereupon the following provisions shall have effect :—

Height of
fences and
hedges at
street
corners.

- (a) Unless such notice is withdrawn by the Corporation no person shall erect a fence hoarding or wall or permit a hedge tree or shrub to grow at a greater height than that prescribed contrary to the requirements of the notice;
- (b) If required by the Corporation the owner of such land shall reduce the height of any fence hoarding wall hedge tree or shrub which exceeds that prescribed by the notice to a height not exceeding that so prescribed.

(2) Any person who contravenes the provisions of paragraph (a) of subsection (1) of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Corporation may reduce the height of such fence hoarding wall hedge tree or shrub to the height prescribed by them and the expense incurred by the Corporation shall be repaid to them by the owner of the land.

(3) If any person for the period of one month after the service of a notice upon him by the Corporation of a requirement under paragraph (b) of sub-section (1) of this section fails to comply therewith the Corporation may themselves carry out the requisition of their notice.

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(4) The Corporation shall make compensation to the owner or other persons interested in any land for any loss or damage which he or they may sustain in consequence of the giving of any notice under this section but such compensation shall not include the expenses incurred by the Corporation and to be repaid to them under subsection (2) of this section and no compensation shall be paid a second time in consequence of the growth of any hedge tree or shrub above the height prescribed in the notice. The amount of any compensation payable under this section shall in default of agreement be determined by arbitration in accordance with the provisions of the Arbitration Act 1889.

(5) Any person aggrieved by any notice given by the Corporation under this section may appeal to a court of summary jurisdiction within one month after the service of such notice provided he give written notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs. Notice of the right to appeal shall be endorsed on every notice given by the Corporation under this section.

(6) The owner of the land shall notwithstanding any agreement with the occupier have power to take such steps as are necessary for complying with any notice of the Corporation under this section.

Lopping of
over-hang-
ing trees
and shrubs.

27.—(1) Where any tree hedge or shrub overhangs any street or footpath so as to obstruct or interfere with the light from any public lamp or to obstruct vehicular traffic or passengers or where any tree is dangerous to such traffic or passengers the Corporation may serve a notice on the owner or occupier of the premises on which such tree hedge or shrub is growing requiring him to lop the tree hedge or shrub within fourteen days so as to prevent such obstruction interference or danger and such notice shall be sufficient authority to the person so served to execute the work prescribed in the notice. In default of compliance the Corporation may themselves carry out the requisition of their notice doing no unnecessary damage and the expenses incurred by them shall be repaid by the person in default.

(2) Any person aggrieved by any requirement of the Corporation under this section may appeal to a court

of summary jurisdiction within fourteen clear days after the service of such notice provided he give written notice of such appeal and the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs. A.D. 1924.

(3) Notice of the right to appeal shall be endorsed on every requirement of the Corporation under this section.

28.—(1) Before any person shall erect on any land a retaining wall of greater height than six feet abutting on or adjacent to or within twelve feet of any street or road he shall submit to the Corporation plans sections and specifications thereof and no such wall shall be erected except in accordance with such plans sections and specifications as approved by the Corporation. Erection of retaining walls.

(2) Any person who shall erect a retaining wall contrary to the provisions of this section or any owner who after erection shall after reasonable notice in writing from the Corporation requiring him so to do fail to put such wall in proper repair shall without prejudice to any other right or remedy of the Corporation be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

29.—(1) Every dwelling-house erected after the passing of this Act shall be provided with sufficient and properly ventilated food storage accommodation and any owner who shall occupy or allow to be occupied any dwelling-house not so provided shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings. Sufficient and proper food storage to be provided.

(2) (a) Every dwelling-house erected before the passing of this Act shall where reasonably practicable be provided with sufficient and properly ventilated food storage accommodation and any owner who shall occupy or allow to be occupied any such dwelling-house which can reasonably be so provided but which is not so provided after one month's notice from the Corporation requiring the same to be done shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings:

(b) Any owner aggrieved by any requirement of the Corporation under this sub-section may appeal to a court of summary jurisdiction within seven days after

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A.D. 1924. the service of such notice provided he give twenty-four hours' written notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs. Notice of the right to appeal shall be endorsed on every requirement of the Corporation under this subsection :

(c) If in any case the owner alleges that the occupier of any dwelling-house in respect of which any work is required to be executed under the provisions of this subsection ought to bear or contribute to the expenses of the execution of such work he may apply to a court of summary jurisdiction and such court shall have power to make such order as the court may think fit.

Repair or
taking down
of dilapi-
dated
buildings.

30.—(1) Where an unoccupied building is ruinous or so far dilapidated as thereby to have become and to be unfit for use or occupation or is from neglect or otherwise in a structural condition prejudicial to the property in or the inhabitants of the neighbourhood a court of summary jurisdiction on complaint by the Corporation may make an order upon the owner thereof requiring him within a reasonable time to be prescribed by the order at his option either to put such building (in this section referred to as a "neglected structure") into a state of repair and good condition to the satisfaction of the Corporation or to take down the same and in addition to or in substitution for the foregoing order they may make an order upon such owner requiring him to fence the ground upon which the neglected structure is or was standing or any part thereof and in either case they may also make an order for the costs incurred up to the time of the hearing.

(2) If the order is not obeyed within the time thereby prescribed the Corporation at any time after the expiration of such time may enter upon the neglected structure or such ground as aforesaid and execute the order.

(3) Where the order provides for the taking down of a neglected structure or any part thereof the Corporation in executing the order may remove the materials to a convenient place and (unless the expenses of the Corporation under this section in relation to

such structure are paid to them within fourteen days after such removal) sell the same if and as they in their discretion think fit. A.D. 1924.

(4) All expenses incurred by the Corporation under this section in relation to a neglected structure may be deducted by the Corporation from the proceeds of the sale and the surplus (if any) shall be paid by the Corporation on demand to the owner of the structure and if such neglected structure or some part thereof is not taken down and such materials are not sold by the Corporation or if the proceeds of the sale are insufficient to defray the said expenses the Corporation may recover such expenses or such insufficiency from the owner of the neglected structure together with all costs in respect thereof in a summary manner but without prejudice to his right to recover the same from any lessee or other person liable to the expenses of repairs.

31.—(1) Every person intending to erect any stand or structure for affording sitting or standing accommodation for a number of persons shall not less than fourteen days prior to the commencement of the erection thereof submit to the Corporation a plan and section thereof and shall comply with such regulations as the Corporation may prescribe for securing the stability of such stand or structure and for securing the safety of persons to be accommodated thereon. Restriction on erection of temporary stands.

(2) Any person acting in contravention of this section or offending against any such regulation shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

32.—(1) Every person who wilfully or negligently turns or permits to enter into any sewer of the Corporation or any drain communicating therewith any petroleum spirit or carbide of calcium from any workshop motor garage or other like premises shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding five pounds. Prohibiting entry of petroleum spirit &c. into sewers

(2) In this section the expression "petroleum spirit" means such crude petroleum oil made from petroleum coal shale peat or other bituminous substances and other products of petroleum and mixtures

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A.D. 1924. containing petroleum as when tested in manner set forth in Schedule I. to the Petroleum Act 1879 gives off an inflammable vapour at a temperature of less than seventy-three degrees Fahrenheit.

Repair of
private
drains.

33. If any drain (including any joint or combined drain) shall not be well and sufficiently maintained and kept in good repair to the satisfaction of the Corporation it shall be lawful for the Corporation if in their opinion such drain can be sufficiently repaired at a cost not exceeding thirty pounds to cause the same to be repaired and the expenses of such repairs may be recovered by them from the owner or owners thereof in such proportions as the surveyor shall determine. Provided that where such expenses do not exceed twenty shillings the Corporation may remit the payment of the same by the owner or owners if they think fit.

Saving for
railway
company.

34. The provisions of this Part of this Act shall not extend or apply to any building (not used as a dwelling-house) or retaining wall or drain (other than a drain used in connection with a dwelling-house) belonging to or which may hereafter belong to the London Midland and Scottish Railway Company in the exercise of their statutory powers or to any lands held or acquired by that company and used for the purposes (other than for a dwelling-house) of their undertaking with the authority of Parliament.

PART VI.

INFECTIOUS DISEASE AND SANITARY PROVISIONS.

Notification
of infectious
disease to
teachers.

35.—(1) Any parent or other person liable to maintain a child in attendance at a school who is aware of or has reason to suspect the occurrence of any infectious disease in any member of the family and who fails forthwith to notify such occurrence to the head teacher of the school shall be liable to a penalty not exceeding twenty shillings.

(2) In any proceeding under this section a certificate purporting to be under the hand of the head teacher of an elementary school or continuation school stating that he has or has not received any notification as required by this section shall be evidence of the facts stated in the certificate.

36.—(1) If the Corporation or any committee of the council acting on the advice of the medical officer with the view of preventing the spread of infectious disease in the borough require the closing of any school in which children are assembled for instruction on a Sunday or specially for religious instruction whether or not on a Sunday or any department thereof or the exclusion of certain children therefrom for a specified time or the exclusion of children from places of public entertainment or assembly for a specified time such requirement shall be at once complied with.

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Power to close Sunday schools and exclude children from entertainments.

(2) Any person responsible for the conduct or management of any school or any department thereof or place of public entertainment or assembly wilfully failing to comply with any such requirement shall for every such failure be liable to a penalty not exceeding twenty shillings.

37.—(1) No person over the age of sixteen years who has the custody charge or care of a child who is or has been attending any school or any part thereof which for the time being is closed by order of the Corporation or of the education committee of the council with the view of preventing the spread of infectious disease or of a child who is suffering from an infectious disease or who with the view of preventing the spread of infectious disease has been prohibited from attending school by the medical officer or school medical officer shall permit such child to attend any school in which children are assembled for instruction on a Sunday or specially for religious instruction whether or not on a Sunday or place of public entertainment or assembly without having procured from the medical officer a certificate (which if granted shall be granted free of charge upon application) that in his opinion such child may attend such last-mentioned school or place of public entertainment or assembly without undue risk of communicating disease to others.

Restriction on attendance of children at places of assembly.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding forty shillings.

38. For the purposes of the foregoing provisions of this Part of this Act the expression "infectious disease" includes in addition to the diseases included in the definition contained in the section of this Act

Extended meaning of "infectious disease"

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—
for certain
purposes.

Power to
require
names of
laundry-
men in
cases of
infection.

of which the marginal note is " Interpretation " measles
german measles whooping cough chicken pox ringworm
scabies and influenza.

39. If the medical officer shall at any time receive notice of a case of infectious disease he may apply to the person who is required by section 3 of the Infectious Disease (Notification) Act 1889 to send a notice of the case of infectious disease for the name and address of any laundryman to whom any clothes or other things may from time to time during the continuance of the infectious disease be sent for washing or mangling from the house in which the case of infectious disease exists and such person shall forthwith furnish such information accordingly Any person who shall offend against this section shall for every such offence be liable to a penalty not exceeding five pounds.

As to filthy
premises.

40.—(1) If the owner of any dwelling-house or premises occupied therewith represents to the Corporation that the occupier of such dwelling-house or premises habitually maintains the same in a filthy condition any officer of the Corporation duly authorised in that behalf may enter upon such dwelling-house or premises and inspect the same and if such officer is satisfied of the truth of the representation of such owner the occupier shall be liable on the information of the medical officer to a court of summary jurisdiction to be ordered to quit the dwelling-house or premises within such time as may be specified in the order and any such order may be enforced in the manner provided by section 34 of the Summary Jurisdiction Act 1879.

(2) Any expenses incurred by the Corporation under this section and not paid by the occupier shall be recoverable from the owner of the dwelling-house or premises.

Houses in-
fested with
vermin to
be cleansed.

41.—(1) If the medical officer or the sanitary inspector has reasonable cause to believe that any house is infested with vermin he may enter into such house and may inspect and examine the same and any articles therein for the purpose of ascertaining whether such house is infested with vermin.

(2) Where on the certificate of the medical officer or sanitary inspector it appears to the Corporation that any house is infested with vermin the Corporation shall give

notice in writing to the occupier of such house or if the same be vacant to the owner thereof requiring him within a period to be specified in such notice to cleanse such house or the portion thereof specified in the notice and any articles therein and if so required in the notice to remove the wall paper or other covering from the walls of such house or the portion thereof specified in the notice and to take such other steps for the purpose of destroying and removing vermin as the case may require. A.D. 1924.

(3) If the person to whom such notice is given fails to comply therewith within the time therein specified he shall be liable to a penalty not exceeding ten shillings for every day during which he makes default in complying with the requirements of such notice and the Corporation may if they think fit at any time after the expiration of the period specified in the notice themselves do any work required by the notice to be done and all reasonable costs and expenses incurred by the Corporation in so doing shall (subject as hereinafter provided) be recoverable from the person making the default.

(4) Every person who shall wilfully obstruct any authorised officer or servant of the Corporation in carrying out the provisions of this section shall be liable to a penalty not exceeding forty shillings.

(5) Upon any proceedings under this section the court may inquire as to whether any requirement contained in any notice given or any work done by the Corporation was reasonable and as to whether the costs and expenses incurred by the Corporation in doing such work or any part thereof ought to be borne wholly or in part by the person to whom notice was given and the court may make such order concerning such costs and expenses or their apportionment as appears to the court to be just and equitable under the circumstances of the case.

(6) For the purposes of this section the word "house" includes any tent van shed or similar structure used for human habitation.

42. Whenever the medical officer shall report in writing to the Corporation or to a committee of the council that there is a prevalence of dangerous infectious disease in the borough or in any adjoining or neighbouring borough or district and that there are reasonable grounds to apprehend the spread or communication of such disease

Medical examination of inmates of common lodging-houses.

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A.D. 1924. — to persons within the borough by persons resorting to common lodging-houses the Corporation or such committee as aforesaid may by resolution declare that by reason of the prevalence of the dangerous infectious disease named in the resolution it is expedient that the medical officer should be entrusted with the special powers hereinafter mentioned and subject as hereinafter provided the following provisions shall thereupon be in force within the borough for such period as the Corporation or such committee as aforesaid having regard to the circumstances of the case shall in the resolution determine (that is to say) :—

- (1) The medical officer may when authorised by warrants granted by any justice on complaint on oath by the medical officer that he has reason to believe that the dangerous infectious disease named in the resolution of the Corporation or such committee as aforesaid may exist or has recently existed in any common lodging-house in the borough medically examine any person found in any common lodging-house in the borough with a view to ascertaining whether such person is suffering or has recently suffered from such disease. Any person obstructing the medical officer in making the examination aforesaid shall be liable to a penalty not exceeding forty shillings for each offence :
- (2) A copy of every such resolution shall forthwith be sent by the Corporation or such committee as aforesaid to every keeper of a common lodging-house in the borough and to the Minister of Health :
- (3) Unless approved by the Minister of Health any such resolution shall cease to be in force at the expiration of fourteen days after it is passed or any earlier date fixed by the said Minister :
- (4) A warrant granted under this section may authorise the medical officer to exercise the powers of examination hereinbefore conferred during such period not exceeding the period during which the provisions aforesaid shall be in force as may be specified in such warrant.

Sanitary
conveniences
for workmen

43.—(1) The contractor or builder engaged in or upon the construction reconstruction or alteration of any

building or of any works shall where practicable provide to the reasonable satisfaction of the Corporation and until the completion of any such construction reconstruction or alteration such water or other closets and urinals in or in connection with such building or works as may be sufficient for the accommodation of the workmen employed.

A.D. 1924.

engaged on buildings.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

44.—(1) It shall not be lawful for any person to use any ashbin or dustbin for any purpose other than the deposit of dust ashes or other house refuse (not being of a liquid or partly liquid character) intended for removal by or on behalf of the Corporation.

Restriction as to use of dustbins.

(2) Any person contravening the provisions of this section shall be liable to a penalty of ten shillings and to a daily penalty of ten shillings.

45.—(1) Public notice of the provisions of this Part of this Act shall be given forthwith after the passing of this Act by advertisement at least twice in a newspaper published or circulating in the borough.

Public notice to be given of provisions of Part VI. of Act.

(2) The production of a copy of a newspaper containing the advertisement shall be sufficient evidence that the provisions of this section have been complied with.

PART VII.

HUMAN FOOD.

46.—(1) At any time after the passing of this Act the Corporation may :—

Provision of public slaughter-houses.

(a) acquire by agreement any premises within the borough used for the purpose of slaughtering animals intended for the food of man (in this section referred to as a "slaughter-house") and the interest or interests of any owner lessee or occupier of such premises ;

(b) agree with the owner lessee and occupier of any slaughter-house for the abolition of slaughtering therein on such terms and conditions as may be arranged between the parties.

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(2) The owner lessee or occupier of any slaughter-house may apply to the Corporation for their approval to such slaughter-house being continued to be used for the purpose of slaughtering animals intended for the food of man and on giving such approval the Corporation may attach thereto such terms or conditions as may be reasonable in the circumstances. Before deciding to withhold such approval the Corporation shall consider representations from and if desired grant an interview to representatives of the National Federation of Meat Traders' Associations (Incorporated).

(3) The owner lessee or occupier of any slaughter-house approved as aforesaid may subject to the terms of such approval and in the case of any lessee or occupier to the terms of the lease or agreement under which he holds his slaughter-house allow the same to be used by any other person for the slaughtering therein of animals intended for the food of man.

(4) At any time after the expiration of three years from the passing of this Act and after the Corporation have provided or approved an adequate slaughter-house in a convenient position (to the satisfaction of the Minister of Health) and after the expiration of six months from the date of publication by the Corporation in a local newspaper circulating in the borough of notice to that effect no person shall without the consent in writing of the Corporation slaughter in the way of trade any animals intended for the food of man except in slaughter-houses provided or approved by the Corporation but this restriction shall not apply to the slaughtering on premises by the owner lessee or occupier thereof of any animals belonging to him and not slaughtered for the purpose of trade or by a farmer on premises occupied by him for agricultural purposes only and if any person acts in contravention of this section he shall be liable for each offence to a penalty not exceeding five pounds.

(5) The Corporation shall pay or tender compensation to the owner or occupier of any slaughter-house registered prior to the passing of the Public Health Act 1875 and of any slaughter-house the licence in respect of which is not required to be renewed periodically and closed under the provisions of this section and the amount of such compensation shall in case of difference be settled as cases of disputed compensation are settled under the Lands

Clauses Acts and the provisions of those Acts shall apply accordingly Provided always that in the case of a slaughter-house which is defective or otherwise open to objection on sanitary grounds the arbitrator shall have regard thereto in settling the amount of compensation (if any) which shall be awarded in respect of the closing of such slaughter-house.

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(6) The fees and charges to be demanded and received by the Corporation in respect of the use of any slaughter-house provided by them or of any convenience connected therewith shall be regulated by byelaws to be approved by the Minister of Health and the Corporation may make byelaws accordingly provided that the Corporation shall have power to charge for any slaughter-house let at a weekly monthly or other rent such sum as may be agreed upon by the Corporation and the renters.

(7) Nothing in this section shall interfere with the operation or effect of the Diseases of Animals Act 1894 or of any order or licence of the Minister of Agriculture and Fisheries made or granted thereunder.

47.—(1) (a) The Corporation may by written notice to the owner and occupier of any registered slaughter-house within the borough which from its situation or construction is in the opinion of the Corporation injurious or dangerous to the public health require that the premises shall cease to be used as a slaughter-house on and after such date (not being less than six months from the service of such notice) as may be specified in the notice and no person shall after such date slaughter in the way of trade any cattle horse sheep or pig on the said premises.

Power to close slaughter-houses if injurious to health.

(b) Provided that not less than three months before making any such requirement in the case of any slaughter-house which from its construction is in their opinion injurious or dangerous to the public health the Corporation shall give notice in writing to the owner or occupier thereof specifying the respects in which such slaughter-house is in their opinion so injurious or dangerous and also specifying their requirements in regard thereto and if within the said period of three months the owner or occupier of such slaughter-house or either of them shall have removed the grounds of objection thereto no such written notice as is first above mentioned shall be given to them by the Corporation.

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(c) Provided also that any such owner or occupier may within one month after receiving any such notice in writing from the Corporation object thereto on the ground that the requirements contained therein are unreasonable and unnecessary in the interests of public health and any such objection shall failing agreement between the Corporation and the owner or occupier making the same be determined on appeal to the Minister of Health by that Minister and unless and until that Minister shall have determined that the said requirements are reasonable and necessary no such written notice as is first above mentioned shall be given to the owner or occupier of the slaughter-house in question.

(2) The Corporation shall make compensation to the owner and occupier of any registered slaughter-house who shall be injuriously affected by any requirement of the Corporation under subsection (1) of this section such compensation in case of difference to be settled in manner provided by the Public Health Act 1875 Provided always that in the case of a slaughter-house which is defective or otherwise open to objection on sanitary grounds the arbitrator shall have regard thereto in settling the amount of compensation (if any) which shall be awarded in pursuance of this section.

(3) If any person acts in contravention of the provisions of subsection (1) of this section he shall be liable for each offence to a penalty not exceeding five pounds.

Penalty on
original
vendor of
unsound
food.

48.—(1) Where it is shown that any animal or article liable to be seized under sections 116 to 119 of the Public Health Act 1875 and section 28 of the Public Health Acts Amendment Act 1890 and found in the possession of any person was sold to him by another person for the food of man (the proof that the same was not sold for the food of man resting with the party charged) and when so sold was in such a condition as to be liable to be so seized and to be condemned under section 117 of the Public Health Act 1875 the person who so sold the same shall be punishable as mentioned in the said section 117 unless he proves that at the time he sold the said animal or article he did not know and had no reason to believe that the said animal or article was in such condition.

(2) Where any article of food has been condemned by a justice under section 117 of the Public Health Act 1875 as amended by section 28 of the Public Health Acts Amendment Act 1890 the person to whom the same belongs or did belong at the time of deposit of such article for the purpose of sale or of preparation for sale as well as the persons in those sections mentioned shall also be punishable as mentioned in the said section 117 unless he proves that at the time of such deposit he did not know and had no reason to believe that the said article was in such a condition as to be liable to be so condemned.

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(3) Before any animal or article liable to be condemned under section 117 of the Public Health Act 1875 as amended by section 28 of the Public Health Acts Amendment Act 1890 and this section is dealt with by a justice the medical officer or the sanitary inspector shall inform the person in whose custody or possession the same was at the time when it was inspected by the medical officer or sanitary inspector of the intention of the medical officer or sanitary inspector to have the same dealt with by a justice and any person who may be liable in respect of such animal or article to a prosecution under the aforesaid provisions shall be entitled to attend the proceedings before the justice and to be heard with his witnesses upon the application for the condemnation of any such animal or article.

49.—(1) The Corporation may make and enforce byelaws for preventing meat (other than meat which has been inspected and passed as fit for the food of man by a medical officer of health or a duly qualified inspector being an official of or authorised to act on behalf of the sanitary authority of the district in which the animal has been slaughtered) brought into the borough from being used for the food of man or being offered for sale or sold or deposited for sale or for the preparation for sale and intended for the food of man until after inspection by an officer of the Corporation.

Byelaws as
to inspec-
tion of
meat.

(2) Provided that any byelaws made by the Corporation under this section shall provide—

(a) that any person bringing any meat (other than meat which has been inspected and passed as fit for the food of man by a medical officer of

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health or a duly qualified inspector being an official or authorised to act on behalf of the sanitary authority of the district in which the animal has been slaughtered) into the borough shall give to the medical officer or sanitary inspector reasonable notice thereof in writing and of the day and hour and place in the borough at which the meat can be inspected as aforesaid; and

(b) that if within such reasonable period after the notified hour as may with due regard to the requirements of the trade be prescribed by the byelaw, an officer of the Corporation shall not have attended at the place so notified for the purpose of inspection the restriction in subsection (1) of this section referred to shall not apply to the meat in respect of which the notice was given.

(3) Before making any such byelaws the Corporation shall give not less than one month's notice to the Haslingden Master Butchers' Association of the Corporation's intention to make such byelaws and such notice shall be accompanied by a copy of the draft byelaws and the Corporation shall confer with the said Association thereon before they submit the same to the Minister of Health for confirmation and such Association shall be entitled to make representations to the Minister of Health with regard thereto.

(4) Nothing contained in this section or in any byelaw to be made thereunder shall apply to the London Midland and Scottish Railway Company.

Byelaws as
to places
used for
preparation
&c. of food.

50. The Corporation may make byelaws for promoting and securing sanitary and cleanly conditions in the manufacture preparation storage transport or exposure for sale of any article intended to be sold for the food of man. Provided that before making any such byelaw applicable to the storage or transport of any article by the London Midland and Scottish Railway Company or the transport to or from any railway station or depot of that company the Corporation shall give not less than one month's notice to that company of the Corporation's intention to make such byelaws and such notice shall be accompanied by a copy of the draft byelaws and the

company shall be entitled to make representations to the Minister of Health with regard thereto : A.D. 1924.

Provided also that before confirming any byelaws made as regards any business carried on in any factory or workshop to which the Factory and Workshop Acts 1901 to 1920 apply the Ministry of Health shall consult the Secretary of State.

51.—(1) Any premises ordinarily used or proposed to be ordinarily used for the preparation or manufacture of sausages pressed potted or preserved meat fish or other food intended for the purposes of sale shall be registered by the owner or occupier thereof with the Corporation from time to time in such manner as they may direct and no premises shall be used for the purposes aforesaid unless the same are so registered and the Corporation shall have power to refuse registration of any premises where the conditions are unsuitable.

Registration
of premises
used for
preserving
foods.

(2) Any person offending against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) The provisions of this section shall have no application to any premises occupied as a factory or workshop of which notice is required by subsection (1) of section 127 of the Factory and Workshop Act 1901 to be given or shall in any way affect the operation of that Act.

(4) (a) Any person deeming himself aggrieved by any requirement of or by the Corporation under this section may within fourteen days from the date of such requirement appeal to a petty sessional court and such court may and is hereby empowered to make such order in the premises and on such terms and conditions as to the court shall seem just.

(b) The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the petty sessional court may direct.

52.—(1) Subject to the provisions of this Act the sanitary inspector or any officer duly authorised by the Corporation in that behalf shall at all reasonable times have power to enter the premises of any vendor of or merchant or dealer in any commodity intended for the food of man or any premises where any such commodity

Entry and
inspection
of premises
where food
deposited
for sale.

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A.D. 1924. — is for the purposes of sale deposited or stored or in preparation for sale for the purpose of inspecting such premises and the materials or commodities or articles of food therein.

(2) On any such inspection the said sanitary inspector or officer of the Corporation shall have power to take samples of any such materials commodities or articles of food found therein making reasonable payment therefor if required and if he intends to submit any sample to analysis he shall forthwith notify to the vendor merchant or dealer or the agent of such person his intention to have the same analysed and shall divide the sample into three parts to be then and there separated and each part to be marked and sealed or fastened up in such manner as its nature will permit and shall if required to do so deliver one of the parts to such vendor merchant dealer or agent. The officer shall afterwards retain one of the said parts for future comparison and submit the third part if he deems it right to have the sample analysed to the analyst.

(3) Nothing contained in this section shall apply to the London Midland and Scottish Railway Company.

Rag and
bone dealers
not to sell
food.

53.—(1) It shall not be lawful for any collector of or dealer in rags or bones or similar articles or any person carrying on the business of a rag or bone merchant or any person acting on behalf of any such person as afore-said to sell or distribute any articles of food from any cart barrow or other vehicle used for the collection of rags bones or similar articles or in or from any shop or premises used for or in connection with the business of rag or bone merchants.

(2) Every person who shall offend against this section shall be liable to a penalty not exceeding five pounds.

Places used
for storage
of human
food not to
be used as a
sleeping
place.

54.—(1) No room shop or other part of a building in which any food is sold or prepared or exposed for sale or deposited for the purpose of sale or of preparation for sale or with a view to future sale shall be used as a sleeping place.

(2) If any person occupies or lets or knowingly suffers to be occupied any such room shop or other part of a building as a sleeping place in contravention of this section he shall be liable to a penalty not exceeding for

a first offence twenty shillings and for every subsequent offence five pounds and in either case to a daily penalty not exceeding twenty shillings. A.D. 1924.

(3) The medical officer and the sanitary inspector and any other officer duly authorised by the Corporation in that behalf shall be entitled at all reasonable times to enter into and inspect any premises on which he suspects that there is any contravention of the provisions of this section and any person refusing entry into or inspection of such premises as aforesaid or obstructing such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding forty shillings.

55.—(1) From and after the passing of this Act the following provisions shall apply to any room shop or other part of a building in which any article whether solid or liquid intended or adapted for the food of man is sold or exposed for sale or deposited for the purpose of sale or of preparation for sale or with a view to future sale :—

Sanitary
regulations
for premises
used for
sale of food.

- (a) No urinal watercloset earthcloset privy ashpit or other like sanitary convenience shall be within such room shop or other part of the building or shall communicate therewith except through the open air or through an intervening ventilated space;
- (b) No drain or pipe for carrying off faecal or sewage matter shall have any inlet or opening within such room shop or other part of the building;
- (c) Refuse or filth whether solid or liquid shall not be deposited or allowed to accumulate in any such room shop or other part of the building except so far as may be reasonably necessary for the proper carrying on of the trade or business;
- (d) Due cleanliness shall be observed in regard to such room shop or other part of the building and all articles apparatus and utensils therein and shall be observed by persons engaged in such room shop or other part of the building.

(2) If any person occupies or lets or knowingly suffers to be occupied any such room shop or other part of the building wherein any of the conditions prohibited by this section exist or does or knowingly permits any act or thing therein in contravention of this section he shall be liable to a penalty not exceeding for a first offence

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A.D. 1924. twenty shillings and for every subsequent offence five pounds and in either case to a daily penalty not exceeding twenty shillings.

(3) The provisions of this section shall not apply to any factory within the meaning of the Factory and Workshop Act 1901.

Public
notice to be
given of
provisions
of Part VII.
of Act.

56.—(1) Public notice of the provisions of this Part of this Act shall be given forthwith after the passing of this Act by advertisement at least twice in a newspaper published or circulating in the borough.

(2) The production of a copy of a newspaper containing the advertisement shall be sufficient evidence that the provisions of this section have been complied with.

PART VIII.

RATING PROVISIONS.

Commence-
ment of
Part VIII.
of Act.

57. This Part of this Act shall come into operation on the first day of April one thousand nine hundred and twenty-five.

All expenses
of Corpo-
ration to be
paid out of
borough
rate.

58.—(1) All expenses of the Corporation which if this Act had not been passed would have been payable out of and all rates charges damages penalties and other moneys which if this Act had not been passed would have been paid or carried to the credit of the district fund and general district rate or either of them shall be charged on and defrayed out of or paid and carried to the credit of the borough fund and the borough rate and in any case for which no specific provision is made in this Act any reference to the district fund or general district rate in any Act or Provisional Order in force in the borough or in any mortgage of or charge on such fund or rate granted by the Corporation in pursuance of the provisions of any such Act or Order shall be deemed to be a reference to the borough fund and the borough rate.

(2) The district fund shall be closed and any balance which on the date upon which this Part of this Act comes into operation is standing to the credit or to the debit of the district fund or the general district rate respectively shall from and after that date be transferred to the credit or the debit (as the case may be) of the borough fund and any moneys owing to the Corporation in respect of or in connection with the district fund or the general

district rate shall notwithstanding the provisions of this Act continue to be payable to and recoverable by the Corporation as if this Act had not been passed and when received by the Corporation shall be carried to the credit of the borough fund. A.D. 1924.

(3) The Corporation may make and levy any borough rate prospectively in order to raise money to pay charges and expenses to be incurred thereafter or retrospectively in order to raise money to pay charges and expenses already incurred.

59. The contribution of the township to the borough rate shall be paid by the overseers out of the poor rate and the provisions of section 145 of the Municipal Corporations Act 1882 shall apply to such contribution. Contribution to borough rate to be paid out of poor rate.

60. The poor rate (inclusive of the contributions to the borough fund levied in pursuance of the provisions of this Act) shall be called "the consolidated rate" but except as expressly provided by this Act that rate shall continue to be subject to all Acts passed and to be passed relating to the poor rate and to be made assessed levied and recovered as the poor rate. Poor rate to be called "the consolidated rate."

61. The following provisions shall have effect in the application of the Poor Rate Assessment and Collection Act 1869 (in this section referred to as "the said Act") within the borough and the township:— Application of Poor Rate Assessment and Collection Act 1869.

- (1) The Corporation shall be substituted for and have all the powers of the vestry in and in relation to the provisions of the said Act:
- (2) The commission which may be allowed under section 3 of the said Act may be of such amount not exceeding twenty per centum as the Corporation may from time to time determine:
- (3) The abatement and deduction and the further abatement and deduction which may be allowed under section 4 of the said Act of fifteen per centum and fifteen per centum respectively may be of such amounts not exceeding ten per centum and ten per centum respectively as the Corporation may from time to time determine:
- (4) The amount of such commission or abatement and deduction as aforesaid which may be from time to time allowed as aforesaid may vary according to the rateable value of the heredita-

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ment to which for the time being it shall be determined by the Corporation to apply provided that such amount shall be the same for the time being in the case of all hereditaments for the time being of a like rateable value :

- (5) Notwithstanding anything in this Part of this Act contained the provisions of this section shall come into operation on the passing of this Act but so that any resolution thereafter passed by the Corporation under the said provisions and any agreement with or notice by any owner thereafter made or given under either of the said sections 3 and 4 of the said Act shall not take effect until after the commencement of this Part of this Act and any agreement with or notice given by any owner under either of the said sections in force at the passing of this Act shall be and the same are hereby determined on and from the commencement of this Part of this Act.

Differential
rating in
certain
cases.

62. The provisions contained in this section shall have effect with respect to the consolidated rate to be made and levied by the overseers (that is to say) :—

- (1) The owner of any tithes or any tithe commutation rentcharge or the occupier of any land used as arable meadow or pasture ground only or as woodlands allotments orchards market gardens or nursery grounds and the occupier of any land covered with water or used only as a canal or towing path for the same or as a railway constructed under the powers of any Act of Parliament for public conveyance shall be assessed to the consolidated rate in respect of such hereditaments on the full rateable value thereof but (subject as hereinafter provided) shall be liable to pay in each year in respect of such hereditaments a rate calculated on the basis of sixty-eight per centum only of the amount in the pound of the rate payable in respect of hereditaments not within the provisions of this section :
- (2) During the continuance of the Tithe Rentcharge (Rates) Act 1899 such Act shall have effect within the borough as if the following provision

were substituted for section 1 thereof (that is to say)— A.D. 1924.

“The owner of tithe rentcharge attached to a benefice shall be liable to pay only seven-twelfths of the amount payable under subsection (1) of the section of the Haslingden Corporation Act 1924 of which the marginal note is ‘Differential rating in certain cases’ in respect of any rate which is assessed on him as owner of that tithe rentcharge and the remaining five-twelfths thereof shall on demand being made by the collector of the rate on the surveyor of taxes for the borough or any district therein be paid by the Commissioners of Inland Revenue out of the sums payable by them to the local taxation account on account of estate duty grant”:

- (3) During the continuance of the Agricultural Rates Act 1923 the occupier of any agricultural land as defined in the Agricultural Rates Act 1896 shall be liable to pay in each year in respect of such land a rate calculated on the basis of one-quarter only of the amount in the pound of the rate payable in respect of hereditaments not within the provisions of this section:
- (4) During any period in which the Agricultural Rates Act 1896 shall be in force and the Agricultural Rates Act 1923 shall not be in force the occupier of any agricultural land as defined in the said Act of 1896 shall be liable to pay in each year in respect of such land a rate calculated on the basis of two-fifths only of the amount in the pound of the rate payable in respect of hereditaments not within the provisions of this section:
- (5) Nothing in this section shall in any way affect—
 - (a) The share of the annual grant payable under the Agricultural Rates Act 1896 to any spending authority or save as expressly provided in this Act the operation of that Act; or
 - (b) The operation of the Agricultural Rates Act 1923 or the power of the Minister of

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Health to estimate as respects each half-year after the commencement of this Part of this Act the amount of the deficiency which would have arisen by reason of Section 1 of that Act if this Act had not been passed in the produce of any rate for the purpose of the issue from the local taxation account of the share of any spending authority in the additional annual grant under the Agricultural Rates Act 1923; or

(c) The operation of the Ecclesiastical Tithe Rentcharge (Rates) Acts 1920 and 1922; or

(d) The amount of the contribution for any purposes to be made by the township out of the poor rate; or

(e) The calculation of the amount in the pound of the part of the consolidated rate levied for the purposes of the relief of the poor and other expenses of the guardians county contributions and expenses of the overseers respectively which is required to be stated in the demand note for the poor rate.

(6) (a) If any occupier referred to in subsection (1) of this section claims that in respect of any rate made or levied he is not receiving the full benefit to which he is entitled under the said subsection he may appeal to the next court of quarter sessions for the county palatine of Lancaster holden not less than twenty-one days after the demand of the rate and according to the provisions of the Summary Jurisdiction Acts but no such appeal shall be entertained by such quarter sessions unless fourteen days' notice in writing of such appeal and of the ground thereof be given by the appellant to the Corporation and the overseers;

(b) On appeals under this sub-section the court to which such appeal shall be made shall have power to determine the amount payable by the occupier in respect of such rate and to award costs between the parties to the appeal.

As to recovery of **63.** No warrant of commitment in respect of non-payment of the consolidated rate shall be issued against

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any person who shall satisfy the court that his failure to pay the said rate is due to circumstances over which he had or has no control and that he has not divested himself of means for the purpose of evading payment of the said rate.

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—
consolidated rate.

64. For the purposes of section 133 of the Lands Clauses Consolidation Act 1845 the poor's rate shall be deemed to be fifty-five per centum of the amount in the pound of the consolidated rate.

As to section 133 of Lands Clauses Consolidation Act 1845.

65.—(1) Section 221 of the Public Health Act 1875 shall apply to the borough in respect of the consolidated rate as if the overseers were an urban authority and the rate therein mentioned were the consolidated rate.

Amendment of consolidated rate.

(2) The powers of section 221 of the Public Health Act 1875 as applied to the consolidated rate by subsection (1) of this section shall extend to enable the overseers to amend any rate made by them so as to make the assessment to such rate accord with any new or supplementary valuation list during the currency of such rate.

66. The Corporation may from time to time if they think fit direct the overseers to make an allowance by way of discount not exceeding five per centum on the amount due in respect of any consolidated rate from every person who pays the same within such time after demand of the rate as the Corporation shall prescribe and the overseers shall make such allowance accordingly Provided that such discount shall be at the same rate under like circumstances to all persons Provided also that notice of this enactment shall be endorsed on every demand note for rates.

Discount on consolidated rate.

67. Section 267 of the Public Health Act 1875 shall apply to any demand for the consolidated rate to be served by the overseers.

Service of demand.

68.—(1) The overseers may require the owner or occupier or reputed owner or occupier of any hereditament in the township (other than land used as arable meadow or pasture ground only or as woodlands) to send to them a return in writing in the form set forth in the Second Schedule to this Act and containing the particulars therein mentioned or referred to :

Overseers may require returns.

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—

Provided that (except for purposes connected with the preparation of and preliminary to a general revaluation for rating) the powers conferred by this section shall only be exercised:—

- (a) upon any change in the occupation or ownership of any hereditament; or
- (b) upon any change in the nature or use of any hereditament whether by way of addition to or adaptation of premises or otherwise such as may affect the value of the hereditament; or
- (c) in the case of any hereditament in respect of which the overseers are of opinion that special circumstances exist which make it desirable that a return should be rendered in accordance with the provisions of this section.

(2) Any person who wilfully refuses or neglects to make a return lawfully required under this section within fourteen days after the requisition for the return shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding two pounds and any person who wilfully makes or causes to be made a false return shall be liable to a penalty not exceeding ten pounds.

(3) The overseers shall whenever required by the assessment committee of the Haslingden Poor Law Union produce from time to time to such committee the returns or any of them obtained by the overseers under the provisions of this section.

(4) Nothing in this section shall require any railway company to include in any return which they may be required to send to the overseers particulars with respect to their running lines sidings or stations.

PART IX.

FINANCE.

Power to
borrow and
repayment
of borrowed
moneys.

69.—(1) The Corporation may in addition to any moneys which they are now authorised to borrow or which they may be authorised to borrow under the provisions of the Public Health Acts or any public general Act borrow at interest the sum requisite for paying the costs charges and expenses of this Act as hereinafter defined and all moneys so borrowed shall be chargeable

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on the borough fund and borough rate and shall be repaid within the period of five years from the passing of this Act and the Corporation may apply any sum so borrowed for the said purpose.

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(2) In addition to the moneys which the Corporation are by the foregoing provisions of this section authorised to borrow they may borrow such sums of money for the purposes of the tramways undertaking as the Minister of Transport may sanction and such sums of money for the purposes of the electricity undertaking as the Electricity Commissioners may sanction and such sums of money for any purposes mentioned in this Act other than purposes of the said undertakings as the Minister of Health may sanction and any moneys borrowed under any such sanction shall be chargeable on the borough fund and borough rate and shall be repaid by the Corporation within the periods sanctioned by the Minister of Transport the Electricity Commissioners or the Minister of Health as the case may be.

(3) The provisions of this section shall not limit the powers conferred upon the Corporation by section 130 (Power to use one form of mortgage for all purposes) of the Act of 1906.

70. The provisions contained in the sections of the Act of 1906 the numbers and marginal notes of which are set forth in this section shall so far as applicable extend and apply as if they were re-enacted in this Act (that is to say) :—

Incorporation of financial provisions of Act of 1906.

- Section 127 (Mode of raising money);
- Section 128 (Provisions of Public Health Act as to mortgages to apply);
- Section 131 (Mode of payment off of money borrowed);
- Section 132 (Sinking fund);
- Section 133 (Protection of lender from inquiry);
- Section 135 (Appointment of receiver); and
- Section 137 (Application of money borrowed):

Provided that the periods for repayment referred to in the section of this Act whereof the marginal note is "Power to borrow and repayment of borrowed moneys" shall respectively be deemed to be "the prescribed period" for the purposes of such application of the said sections :

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Provided also that the said sections shall be read and have effect as if the Minister of Health were referred to therein in lieu of the Local Government Board.

Power to
re-borrow.

71.—(1) The Corporation shall have power—

- (a) To borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended forthwith to be repaid; or
- (b) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

- (a) By instalments or annual payments; or
- (b) By means of a sinking fund; or
- (c) Out of moneys derived from the sale of land; or
- (d) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

Return as
to sinking
fund.

72.—(1) The treasurer shall if and when he is requested by the Minister of Health so to do transmit to the said Minister a return shewing the provision made for the repayment of any loans raised by the Corporation under any statutory borrowing power.

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(2) The return shall show such particulars and shall be made up to such date and in such form as the Minister of Health may require and shall if so required by him be verified by statutory declaration of the treasurer or other the chief accounting officer of the Corporation and shall be transmitted within one month after the making of the request and in the event of his failing to make such return the treasurer or other officer shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(3) If it appear to the Minister of Health by such a return as aforesaid or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by the Act in pursuance of which the moneys are raised or by the said Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than those authorised the Minister may by order direct that the sum in such order mentioned not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date in such order mentioned and the Corporation shall notify the Minister as soon as the order is complied with and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

73.—(1) Notwithstanding anything contained in the Public Health Acts Amendment Act 1890 or in any other Act or Order as from the thirty-first day of March one thousand nine hundred and twenty-five or as from any succeeding thirty-first day of March the Corporation may if they think fit establish a fund to be called the consolidated loans fund to which shall be paid as and when they are received :—

Consoli-
dated loans
fund.

- (a) All moneys borrowed by the Corporation whether by issue of stock or other security together with any moneys temporarily borrowed without

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security in connection with the exercise of duly authorised borrowing powers;

- (b) All moneys of a capital nature received by the Corporation whether from the sale of capital assets or otherwise except such as are applied by the Corporation with due authority to another capital purpose; and
- (c) The appropriate sums provided in each year out of other funds of the Corporation to comply with the terms and conditions as to repayment attaching to their several borrowing powers:

And there shall also be carried to the credit of the consolidated loans fund the unapplied balances of all moneys borrowed or received except of such moneys as have been borrowed from the Public Works Loan Commissioners and of all sums provided by the Corporation as aforesaid before the thirty-first day of March as from which the consolidated loans fund shall be established.

(2) The moneys of the consolidated loans fund shall be used or applied by the Corporation:—

- (a) In the exercise of any duly authorised borrowing power by transfer of the required amount to the appropriate fund and account of the Corporation; or
- (b) In the redemption of stock or any other securities issued by the Corporation the purchase of stock for extinction or the repayment of any moneys borrowed by the Corporation:

And any moneys of the consolidated loans fund not used or applied in these ways may be invested in statutory securities and the sums realised by the sale of such securities shall be repaid on receipt to the consolidated loans fund and the moneys of the consolidated loans fund shall not be used or applied otherwise than as provided in this subsection.

(3) Subject to any priority existing at the passing of this Act all stock of and loans to the Corporation and the dividends and interest thereon shall be charged indifferently on all the revenues of the Corporation and shall rank equally one with the other without any priority whatsoever.

(4) Save as in this section expressly provided all the obligations of the Corporation to the holders of stock or

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other securities of the Corporation shall continue in force. A.D. 1924.

(5) The powers conferred by this section shall not be put into operation by the Corporation except in accordance with a scheme to be approved by the Minister of Health and such scheme may make provision for any matters incidental to the establishment and administration of the consolidated loans fund.

74. Notwithstanding anything contained in any Act of Parliament or Order the rate of accumulation of the annual payments to every accumulating sinking fund which has been or may be formed by the Corporation for any purpose may be reckoned at a rate not exceeding three pounds ten shillings per centum per annum or such other rate as the Minister of Health may from time to time approve.

Rate of accumulation of annual payments to sinking fund.

75. When under the provisions of any Act of Parliament or of any Order confirmed by or having the effect of an Act of Parliament whether passed confirmed or made before or after the passing of this Act the Corporation are empowered or required to form a sinking fund for the payment off of moneys borrowed or payable by them or a reserve or renewals fund they may (in addition to any other powers for the time being vested in them) invest such sinking fund or reserve or renewals fund and the interest on the investments of such sinking fund reserve or renewals fund in statutory securities.

Power to invest certain funds in statutory securities.

76. Notwithstanding anything contained in this or any other Act the Corporation may use for the purpose of any statutory borrowing power possessed by them any moneys forming part of any sinking fund loans fund redemption fund or reserve fund of the Corporation (in this section respectively referred to as "the lending fund") and not for the time being required subject to the following conditions :—

Use of moneys forming part of sinking and other funds.

- (a) The moneys so used shall be repaid to the lending fund by equal yearly or half-yearly instalments of principal or of principal and interest combined within the period and out of the fund rate or revenue within and out of which a loan raised under the statutory borrowing power would be repayable;

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(b) Interest shall be paid to the lending fund on any moneys so used and for the time being not repaid to the fund. Such interest shall be calculated at a rate per centum per annum to be determined by the Corporation and to be equal as nearly as may be to the rate of interest which would be payable on a loan raised on mortgage under the statutory borrowing power and shall be paid out of the fund rate or revenue which would be applicable to the payment of interest on a loan raised under the statutory borrowing power;

(c) The statutory borrowing power for the purpose of which the moneys are so used shall be deemed to be exercised by such use as fully in all respects as if a loan of the same amount had been raised in exercise of the power.

Receipt in case of persons not sui juris.

77. If any moneys are payable to a mortgagee or stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Corporation.

Evidence of transfer or transmission of securities.

78. It shall not be obligatory on the Corporation to receive or register any transfer assignment certificate of death, burial, bankruptcy or marriage probate letters of administration or other document evidencing a transmission of any authorised security (except securities issued under the Local Loans Act 1875) except upon the production to and temporary deposit with the treasurer of the security or the certificate thereof for the purpose of the endorsement thereon of a memorandum of such transmission or the issue of a new security or certificate thereof and in case of the issue of a new security or certificate for the purpose of cancellation of the security or certificate so deposited.

Interest on mortgages held jointly.

79. Where more persons than one are registered as joint holders of any mortgage of the Corporation any one of them may give an effectual receipt for any interest thereon unless notice to the contrary has been given to the Corporation or the treasurer by any other of them.

Period for repayment of loans under

80. Notwithstanding anything contained in the Municipal Corporations Act 1882 any money borrowed or to be borrowed by the Corporation in pursuance of that

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Act shall be repaid within such period not exceeding sixty years as the Minister of Health shall in each case prescribe.

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Municipal
Corporations
Act 1882.

Separate
accounts in
respect of
certain un-
dertakings.

81. As from the first day of April one thousand nine hundred and twenty-five the Corporation shall keep their accounts so as to distinguish capital from revenue and as regards the revenue accounts to show under a separate heading or division in respect of each of the following undertakings (that is to say) the tramways undertaking the electricity undertaking and the markets undertaking (each of which is in this section separately referred to as "the undertaking") on the one side all receipts in respect of the undertaking and on the other side all payments and expenses in respect of the undertaking such payments and expenses being divided so as also to show in each case the amounts expended in respect of each of the following purposes (that is to say):—

- (a) The working and establishment expenses and cost of maintenance of the undertaking;
- (b) The interest on moneys borrowed by the Corporation for the purposes of or connected with the undertaking;
- (c) The requisite appropriations instalments or sinking fund payments in respect of moneys borrowed for the purposes of the undertaking;
- (d) All other expenses (if any) of maintaining the undertaking;
- (e) The amount (if any) paid to a reserve fund which the Corporation are hereby authorised to maintain (if the Corporation think fit) in respect of the undertaking by setting aside such an amount as they may from time to time think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Corporation not exceeding (except in the case of the tramways undertaking) a sum equal to one-fifth of the aggregate capital expended for the time being by the Corporation upon the undertaking which fund shall be applicable to meet any extraordinary claim or demand at any time arising against the Corporation in respect

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of the undertaking or for payment of the cost of renewing any part of the works forming part thereof or for any extension of the said works or otherwise for the benefit of the undertaking and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

Revenue
and ex-
penses of
trading un-
dertakings.

82. As from the first day of April one thousand nine hundred and twenty-five all money received by the Corporation on account of the revenue of the following undertakings (namely):—

- (1) the tramways undertaking;
- (2) the electricity undertaking; and
- (3) the markets undertaking;

shall be carried to and shall form part of the borough fund and all payments and expenses made and incurred in respect of those undertakings shall be paid out of that fund.

Audit of
accounts of
Corporation
by ap-
pointed
auditors.

83.—(1) The Corporation may from time to time appoint and pay one or more members of the Institute of Chartered Accountants or of the Society of Incorporated Accountants and Auditors to act as auditor or auditors of the accounts of the Corporation in such manner as the Corporation direct in lieu of the auditors appointed under the Municipal Corporations Acts Any auditor or auditors appointed by the Corporation under the provisions of this section and for the time being holding office is or are in this section referred to as “the appointed auditor.”

(2) If and while the Corporation exercise the powers of subsection (1) of this section section 25 of the Municipal Corporations Act 1882 shall not apply within the borough.

(3) Every appointment of an auditor or auditors under this section shall be in writing under the seal of the Corporation and may be for such term and subject to such conditions as the Corporation may think fit.

(4) Subsection (1) of section 27 of the Municipal Corporations Act 1882 shall apply and have effect as if the appointed auditor had been referred to therein instead of the borough auditors and in addition the appointed auditor shall be entitled to require from any officer of the

Corporation all such papers books accounts vouchers
sanctions for loans information and explanations as may
be necessary for the performance of his duties. A.D. 1924.

(5) The appointed auditor shall include in or append
to any certificate given by him with reference to the
accounts of the Corporation such observations and
recommendations (if any) as he may deem necessary or
expedient with respect to the accounts and any matter
arising thereout or in connection therewith.

84. All expenses incurred by the Corporation in carrying into execution the provisions of this Act with respect to which no other provision is made shall be defrayed out of the borough fund and borough rate. Expenses of execution of Act.

PART X.

MISCELLANEOUS.

85.—(1) The Corporation may if they think fit in cases not within the Workmen's Compensation Act 1906 or the School Teachers' (Superannuation) Act 1918 and not entitled to benefits under a scheme established under the Local Government and Other Officers Superannuation Act 1922 grant a gratuity of any sum (not exceeding two years' pay) to any of their officers or servants who may be disabled or injured in their service or may become incapacitated through age sickness or other infirmity or to the widow or family of any such officer or servant who may die in their service. Power to grant gratuities in certain cases.

(2) Every such gratuity shall be charged on and paid out of the fund or funds on or out of which the salary wages or emoluments of such officer or servant would have been charged or been paid if he had continued in his office or service.

(3) In and for the purposes of this section the expression "officers or servants" shall include any teacher who at the date of the passing of this Act is or shall thereafter be permanently and exclusively employed by the Corporation as the local education authority for the borough or permanently and exclusively employed in any public elementary school in the borough (whether provided by the Corporation as the local education authority or not so provided) or permanently and

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A.D. 1924. — exclusively employed in any school college or hostel provided by the Corporation for the purposes of higher education under the provisions of the Education Act 1921.

Power to
subscribe to
associations
&c. **86.** The Corporation may pay out of the borough fund as expenses incurred by them under the Municipal Corporations Act 1882 :—

- (1) Reasonable subscriptions (whether annual or otherwise) to the funds of any association of municipal corporations or of local authorities or their officers formed for the purpose of consultation as to their common interests and the discussion of matters relating to local government and any reasonable expenses of the attendance of any members or officers of the Corporation (not exceeding in any case four) at conferences or meetings of such associations or any of them and the cost of purchasing reports and contributing towards the expenses of the proceedings of any such conferences or meetings :
- (2) The reasonable expenses of the Corporation in providing public entertainments on the occasion of or otherwise in connection with public ceremony or rejoicing and in the reception and entertainment of distinguished persons residing in or visiting the borough.

Power to
Corporation
to subscribe
to hospitals
&c. **87.** The provisions of section 131 of the Public Health Act 1875 shall be extended so as to enable the Corporation to subscribe to any hospital infirmary dispensary or other institution of a similar character such sum or sums as they may from time to time think fit not exceeding in any year the amount which would be produced by the levying of a borough rate of one penny in the pound and to charge the amount of any such subscription to or apportion the same among all or any of their funds and revenues.

Service of
summons on
members of
Council. **88.** Notwithstanding anything contained in the Second Schedule to the Municipal Corporations Act 1882 the summons to members of the council may be delivered at the usual place of abode of every member of the council by post by prepaid letter at the ordinary rate of postage.

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89. Assistant overseers appointed by the Corporation shall not be required to give security to the guardians of the Haslingden Poor Law Union under section 61 of the Poor Law Amendment Act 1844.

Certain assistant overseers not to give security to guardians.

90. The provisions contained in the sections of the Act of 1906 the numbers and marginal notes of which are set forth in this section shall so far as applicable extend and apply as if they were re-enacted in this Act (that is to say)—

Incorporation of further provisions of Act of 1906.

Section 147 (Inquiries by Local Government Board);

Section 150 (Informations by whom to be laid);

Section 151 (Compensation how to be determined);

Section 152 (As to appeal);

Section 153 (Recovery of penalties &c.);

Section 154 (Penalties to be paid over to treasurer);

Section 155 (Damages and charges to be settled by court);

Section 159 (Saving for indictments &c.); and

Section 160 (Recovery of demands):

Provided that the said section 147 shall be read and have effect as if the Minister of Health were referred to therein in lieu of the Local Government Board and as if the words "not exceeding five guineas a day" were inserted therein in lieu of the words "not exceeding three guineas a day."

91. Whenever the Corporation or the surveyor under any enactment or byelaw from time to time in force within the borough execute re-execute or alter any work or do any act or thing in default or at the request of the owner occupier or other person required to do such work act or thing the Corporation shall not as between themselves and such owner occupier or other person in the absence of any negligence on the part of the Corporation or the surveyor or of any contractor or other person employed by them or him be liable to pay any damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing and any such damages penalties costs charges or expenses paid by the Corporation in the absence of negligence as aforesaid shall be

In executing works for owner Corporation only liable for negligence.

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A.D. 1924. — deemed to be part of the expenses payable by such owner occupier or other person and shall be recoverable accordingly.

Apportionment of expenses between different owners.

92. Where under the provisions of this Act or any local Act from time to time in force within the borough the Corporation shall construct or do any work for the common benefit of two or more buildings belonging to different owners the expenses which under those Acts or any of them are recoverable by the Corporation from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction.

Confirmation of byelaws.

93. Save where otherwise provided by this Act the provisions of sections 182 to 185 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority shall apply to all byelaws made by the Corporation under the powers of this Act.

Power to enter premises.

94. The provisions of sections 102 and 103 of the Public Health Act 1875 shall extend and apply to the purposes of Part V. (Streets buildings and sewers) Part VI. (Infectious disease and sanitary provisions) and Part VII. (Human food) of this Act as if those purposes had been mentioned in the said section 102.

Application of section 265 of Public Health Act 1875.

95. Section 265 of the Public Health Act 1875 shall extend and apply to the purposes of any enactment from time to time in force within the borough.

Evidence of appointments authority &c.

96. Where in any legal proceedings taken by or on behalf of or against the Corporation or any officer servant solicitor or agent of the Corporation or of any committee of the Corporation under any enactment from time to time in force within the borough it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Corporation or of any committee of the Corporation or to prove any resolution or order of the Corporation or any resolution order or report of any committee of the Corporation a certificate of such appointment authority resolution order or report purporting to be authenticated by the signature of the mayor or of the town clerk shall be prima facie evidence of such appointment authority.

resolution order or report without further proof of the holding of any meeting or the production of any minute book or other record or document. A.D. 1924.

97. Where the payment of more than one sum by any person is due under any Act or Order from time to time in force within the borough any summons or warrant issued for the purposes of any such Act or Order in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him. Summons or warrant may contain several sums.

98. A judge of any court or a justice shall not be disqualified from acting in the execution of any enactment from time to time in force within the borough by reason of his being liable to any rate. Judges &c. not disqualified.

99.—(1) Where any notice or demand under any enactment byelaw or regulation from time to time in force within the borough requires authentication by the Corporation the signature of the town clerk or other duly authorised officer of the Corporation shall be sufficient authentication. Authentication and service of notices &c.

(2) Notices demands orders and other documents required or authorised to be served under any such enactment byelaw or regulation may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served. Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their registered office or at their principal office or place of business.

100. All consents given by the Corporation under the provisions of this Act or of any local Act Provisional Order byelaw or regulation from time to time in force within the borough shall be given in writing and unless otherwise prescribed shall be given under the hand of the town clerk or other duly authorised officer of the Corporation. Consents to be in writing.

101. Where under any enactment from time to time in force within the borough the Corporation give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms Effect of breach of conditions attached to consent.

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A.D. 1924. — or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent.

Powers of
Act cumu-
lative.

102. All powers rights and remedies given to the Corporation by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them or on any committee appointed by them by Act of Parliament charter law or custom and the Corporation or such committee (as the case may be) may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed. Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence.

Repeal. **103.** The following enactments are hereby repealed :—

THE HASLINGDEN ELECTRIC LIGHTING
ORDER 1899 :

Section 52 (Application of revenue),

THE ACT OF 1906 :

Section 26 (Corporation may lop trees overhanging public highway);

Section 54 (Application of tramway revenue);

Section 66 (Power to lay electric apparatus in streets or roads not dedicated to public use);

Section 69 (Expenses and revenue under this Part of Act);

Section 136 (Power to re-borrow);

Section 138 (Annual return to Local Government Board with respect to sinking fund);

Section 139 (Power to use sinking fund instead of borrowing);

Section 146 (Persons acting in execution of Act not to be personally liable);

Section 149 (Authentication and service of notices &c.);

Section 156 (In executing works for owner Corporation not liable for damage save in case of negligence);

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Section 157 (Consent of Corporation to be in A.D. 1924.
writing);

Section 158 (Evidence of appointments authority
&c.);

Section 161 (Judges not disqualified); and

Section 162 (Audit of accounts).

104. Nothing in this Act affects prejudicially any Crown
estate right power privilege or exemption of the Crown. rights.

105. The costs charges and expenses preliminary to Costs of
and of and incidental to the preparing applying for obtain- Act.
ing and passing of this Act as taxed and ascertained by
the taxing officer of the House of Lords or of the House
of Commons shall be paid by the Corporation out of the
borough fund or borough rate or out of money to be
borrowed under this Act for that purpose.

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A.D. 1924. The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

PROPERTIES OF WHICH PORTIONS ONLY MAY BE
TAKEN COMPULSORILY.

No. on Deposited Plan.	Description of Property in Book of Reference.
---------------------------	--

- | | |
|---|----------------------------|
| 1 | Wall. |
| 2 | Yard and private pavement. |
| 3 | Fence wall. |

THE SECOND SCHEDULE.

RETURN OF RENT OR ANNUAL VALUE AND OF OTHER
PARTICULARS TO BE RENDERED UNDER THE
HASLINGDEN CORPORATION ACT 1924.

- | | |
|---|--|
| 1. Name of the street or road &c. in
which the property is situate -
Number of the house - - -
(If not numbered state the name by
which known.)
Whether occupied with or without
stables or other premises as part
of the same property - -
The quantity of land (if any) and
how used - - - - - | |
| 2. Full Christian name and surname
of occupier - - - - - | |
| 3. Name and address of owner or
immediate lessor - - -
(If not known state the name and
address of the agent or person to
whom the rent is paid.) | |

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4. Whether the property is occupied— (a) Wholly as a private residence - - - - - or (b) Partly as a dwelling-house and partly for trade or business purposes - - - - - or (c) Solely for trade or business purposes with no person residing on the premises other than a caretaker - - - - - (Number of rooms set apart for the use of the caretaker (if any) and on which floor.) (d) Nature of the business (if any)	(a) _____ (b) _____ (c) _____ (d) _____
5. If the occupation is in respect of part only of a house or premises state the extent and on which floor or floors - - - - -	_____
6. Amount of rent - - - - - or If ground rent only is paid state its amount - - - - -	£ _____ per _____ £ _____ per _____
7. Whether the property is held under lease or agreement for a period of years - - - - - or By the year quarter month or week - - - - -	_____
8. (a) Date of commencement of term of lease or agreement - - - - - (b) Term of years for which granted (c) Whether granted for any consideration in money in addition to the rent or upon any condition as to laying out money in building rebuilding or improvements - - - - - (If none insert "None.")	(a) _____ (b) _____ (c) _____ Amount paid for lease £ _____
9. If the occupier is the owner or has purchased the lease the full annual value should be stated i.e. the amount at which the property is worth to be let by the year the owner keeping it in repair - - - - -	} Annual Value £ _____
10. (a) Amount of land tax (if any) - - - - - (b) Amount of tithe rentcharge or of any rate or assessment in lieu of tithes paid in the year 19 (State in each case whether borne by the landlord or tenant.)	(a) £ _____ Borne by the _____ (b) £ _____ Borne by the _____
11. Whether all usual tenant's rates and taxes are paid and borne by the occupier in addition to the rent - - - - -	_____

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12. Whether the landlord or the tenant undertakes to bear the cost of repairs insurance and other expenses necessary to maintain the property
(If each undertakes to bear part only of the cost of repairs state the particulars.)

DECLARATION.

I declare that the foregoing particulars are in every respect fully and truly stated to the best of my judgment and belief.

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